



COMMERCIAL SUBLEASE GUARANTY

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GUARANTY TO COMMERCIAL SUBLEASE CONCERNING THE SUBLEASED PREMISES AT _____
_____ **between**
_____ **(Sublessor) and**
_____ **(Sublessee).**

- A. In consideration for Sublessor subleasing the subleased premises to Sublessee, the undersigned Guarantor (whether one or more) guarantee Sublessee's performance under the above-referenced sublease.
- B. If Sublessee fails to timely make any payment under the sublease, Guarantor will promptly make such payment to Sublessor at the place of payment specified in the sublease. Guarantor is also responsible for any damage to the subleased premises or other property for which Sublessee is responsible under the sublease. If Sublessee breaches the sublease, Guarantor will: (i) cure the breach as may be required of Sublessee by the sublease; or (ii) compensate Sublessor for Sublessor's loss resulting from the breach.
- C. Guarantor guarantees Sublessee's obligations under the sublease regardless of any modification, amendment, renewal, extension, or breach of the sublease. Guarantor waives any rights to notices of acceptance, modification, amendment, extension, or breach of the sublease. Each Guarantor is jointly and severally liable for all provisions of this guaranty. This guaranty is binding upon Guarantor's heirs, executors, administrators, successors, and assigns. Filing for bankruptcy by Sublessee will not diminish Guarantor's obligations under this guaranty.
- D. The laws of the State of Texas govern the interpretation, validity, performance, and enforcement of this guaranty. Any person who is a prevailing party in any legal proceeding brought under or related to this guaranty is entitled to recover attorney's fees from the nonprevailing party.
- E. Guarantor authorizes Sublessor to obtain a copy of any consumer or credit report of Guarantor from any consumer reporting agency and to verify relevant information related to Guarantor's creditworthiness from other persons such as banks, creditors, employers, existing and previous landlords, and other persons.
- F. Guarantor will provide Guarantor's current financial information (balance sheet and income statement) to Sublessor within 30 days after request by Sublessor. Sublessor may request the financial information no more frequently than once every 12 months.
- G. Special Provisions:

Guarantor:

Signature: _____

Printed Name: _____

Address: _____

Phone: _____ Fax: _____

SS# or Tax ID#: _____ Date: _____

Witness: _____

Guarantor:

Signature: _____

Printed Name: _____

Address: _____

Phone: _____ Fax: _____

SS# or Tax ID#: _____ Date: _____

Witness: _____